ORDINANCE 26—009Z

ORDINANCE OF THE TOWN OF NORTH PROVIDENCE REPEALING THE EXISTING ZONING ORDINANCE, ARTICLE III CHAPTER 317 ENTITLED "FLOOD HAZARD DISTRICTS" AND REPLACING WITH THE FOLLOWING.

WHEREAS, the Town Council of the Town of North Providence desires to repeal and replace, by Ordinance, its existing Zoning Ordinance, Chapter 317 entitled "Flood Hazard Districts".

WHEREAS, an application has been filed by the Town of North Providence requesting amendment to the North Providence Zoning Ordinance.

NOW THEREFORE, IT IS ORDAINED BY THE TOWN COUNCIL OF THE TOWN OF NORTH PROVIDENCE AS FOLLOWS:

SECTION 1. The Town of North Providence Zoning Ordinance Chapter 317 entitled "Flood Hazard Districts" shall be repealed and replaced as follows:

317. Flood Hazard Districts

317-1. Purpose.

The purpose of this Ordinance is to ensure public safety; minimize hazards to persons and property from flooding, to protect watercourses from encroachment and to maintain the capability of floodplains to retain and carry off floodwaters. North Providence elects to comply with the requirements of the National Flood Insurance Act of 1968 (P.L. 90-488, as amended).

SECTION A. SPECIAL FLOOD HAZARD AREAS

(1) **Special Flood Hazard Area Overlay District**. The Special Flood Hazard Areas are herein established as a floodplain overlay district. The District includes all special flood hazard areas within the Town of North Providence designated as Zone A, AE, AH, AO, A99, V, or VE on the Providence County Flood Insurance Rate Map (FIRM) and Digital FIRM issued by the Federal Emergency Management Agency (FEMA) for the administration of the National Flood Insurance Program. The map panels of the Providence County FIRM that are wholly or partially within the Town of North Providence are panel numbers (44007C0301H, 44007C0303H, 44007C0304J, 44007C0302H, 44007C0189H, 44007C0193H, 44007C0306H) dated (October 2, 2025). The exact boundaries of the District may be defined by the 100-year base flood elevations shown on the FIRM and further defined by the Providence County Flood Insurance Study (FIS) report dated (October 2, 2015). The office of Building Official is responsible for floodplain management. The FIRM and FIS report and any revisions thereto are incorporated herein by reference and are on file with the {Building Official).

317-2. DEFINITIONS

Unless specifically defined below, words and phrases used in this ordinance pertain to floodplain management, have the same meaning as they have in common usage and to give this ordinance it's most reasonable application.

(1) **Accessory Structure** – A structure which is on the same parcel of property as the principal structure to be insured and the use of which is incidental to the use of the principal structure.

(2) **Area of Shallow Flooding** (for a community with AO or AH Zones only) – A designated AO, AH, AR/AO, AR/AH, or VO zone on a community's Flood Insurance Rate Map (FIRM) with a one percent or greater annual chance of flooding to an average depth of one to three feet where a clearly defined channel does not exist, where the path of flooding is unpredictable, and where velocity flow may be evident. Such flooding is characterized by ponding or sheet flow.

(3) **Area of Special Flood Hazard** – see definition for "Special Flood Hazard Area".

(4) **Base Flood** – The flood having a one (1) percent chance of being equaled or exceeded in any given year.

(5) **Base Flood Elevation (BFE)** – The elevation of the crest of the base flood or 100-year flood. The height, as established in relation to the North American Vertical Datum (NAVD) of 1988 (or other datum where specified), in relation to mean sea level expected to be reached by the waters of the base flood at pertinent points in the floodplains of coastal and riverine areas.

(6) **Basement** – Any area of a building having its floor subgrade (below ground level) on all sides.

(7) **Building** – see definition for "Structure".

(8) **Coastal A Zone** – Area within a special flood hazard area, landward of a V Zone or landward of an open coast without mapped V Zones. The principal source of flooding must be astronomical tides, storm surges, seiches, or tsunamis, not riverine flooding. During the base flood conditions, the potential for breaking wave heights shall be greater than or equal to 1.5 feet. It is helpful to include certain definitions to aid in understanding and enforcing the floodplain ordinance. Inclusion of the following definitions should be tailored to a community's needs. For example, there is no need to include a definition of a Zone A99 if the community has no such zone on its map. The definitions in the model are taken from the NFIP regulations and the Rhode Island State Building Code.

(9) **Cost** – As related to substantial improvements, the cost of any reconstruction, rehabilitation, addition, alteration, repair or other improvement of a structure shall be established by a detailed written contractor's estimate. The estimate shall include, but not be limited to: the cost of materials (interior finishing elements, structural elements, utility and service equipment); sales tax on materials, building equipment and fixtures, including heating and air conditioning and utility meters; labor; built-in appliances; demolition and site preparation; repairs made to damaged parts of the building worked on at the same time; contractor's overhead; contractor's profit; and grand total. Items to be excluded include: cost of plans and specifications, survey costs, permit fees, costs to correct code violations subsequent to a violation notice, outside improvements such as septic systems, water supply wells, landscaping, sidewalks, fences, yard lights, irrigation systems, and detached structures such as garages, sheds, and gazebos.

(10) **Development** – Any man-made change to improved or unimproved real estate, including but not limited to the construction of buildings or other structures, mining, dredging, filling, grading, paving, excavation or drilling operations or storage of equipment or materials.

(11) **Existing Manufactured Home Park or Manufactured Home Subdivision** – A manufactured home park or manufactured home subdivision for which the construction of facilities for servicing the lots on which the manufactured home are to be affixed (including, as a minimum, the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete

pads) is completed before the effective date of the floodplain management regulations adopted by a community.

(12) **Expansion to an Existing Manufactured Home Park or Existing Manufactured Home Subdivision** – The preparation of additional sites by the construction of facilities for servicing the lots on which the manufacturing homes are to be affixed (including the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads).

(13) **Federal Emergency Management Agency (FEMA)** The federal agency that administers the National Flood Insurance Program (NFIP).

(14) **Flood or Flooding** – A general and temporary condition of partial or complete inundation of normally dry land areas from either the overflow of inland or tidal waters, or the unusual and rapid accumulation or runoff of surface waters from any source.

(15) **Flood Insurance Rate Map (FIRM)** – The official map of a community on which the Federal Insurance Administrator has delineated both the special hazard areas and the risk premium zones applicable to the community. A FIRM that has been made available digitally is called a Digital Flood Insurance Rate Map (DFIRM).

(16) **Flood Insurance Study (FIS)** – The official study of a community in which the Federal Emergency Management Agency (FEMA) has conducted a technical engineering evaluation an determination of local flood hazards, flood profiles and water surface elevations. The Flood Insurance Rate Maps (FIRM), which accompany the FIS, provide both flood insurance rate zones and base flood elevations, and may provide the regulatory floodway limits.

(17) **Flood Proofing** – Any combination of structural and non-structural additions, changes, or adjustments to structures which reduce or eliminate flood damage to real estate or improved real property, water and sanitary facilities, structures and their contents.

(18) **Floodway** – The channel of a river or other watercourse and the adjacent land areas that must be reserved in order to discharge the base flood without cumulatively increasing the water surface elevation more than a designated height. For the purposes of these regulations, the term "Regulatory Floodway" is synonymous in meaning with the term "Floodway".

(19) **Freeboard** - A factor of safety usually expressed in feet above a flood level for purposes of floodplain management. "Freeboard"; tends to compensate for the many unknown factors that could contribute to flood heights greater than the height calculated for a selected size flood and floodway conditions, such as wave action, bridge openings, and the hydrological effect of urbanization of the watershed.

(20) **Functionally Dependent Use or Facility** – A use that cannot perform its intended purpose unless it is located or carried out in close proximity to water. The term includes only docking facilities, port facilities that are necessary for the loading and unloading of cargo or passengers, and ship building and ship repair facilities.

(21) **Highest Adjacent Grade (HAG)** – The highest natural elevation of the ground surface prior to construction next to the proposed walls of a structure.

(22) **Historic Structure** – Any structure that is:

a. (Listed individually in the National Register of Historic Places (a listing maintained by the Department of the Interior) or preliminarily determined by the Secretary of the Interior as meeting the requirements for individual listing on the National Register;

b. Certified or preliminarily determined by the Secretary of the Interior as contributing to the historic significance of a registered historic district or a district preliminarily determined by the Secretary to qualify as a registered historic district;
c. Individually listed on a state inventory of historic places in states with historic preservation programs which have been approved by the Secretary of the Interior; or
d. Individually listed on a local inventory of historic places in communities with historic preservation programs that have been certified either: (1) By an approved state program as determined by the Secretary of the Interior or (2) Directly by the Secretary of the Interior in states without approved programs.

(23) **Limit of Moderate Wave Action (LiMWA)** - An advisory line indicating the limit of the 1.5-foot wave height during the base flood.

(24) **Lowest Floor –** The lowest floor of the lowest enclosed area (including basement). An unfinished or flood resistant enclosure, usable solely for parking of vehicles, building access or storage in an area other than a basement area is not considered a building's lowest floor; Provided, that such enclosure is not built so as to render the structure in violation of the applicable non-elevation design requirements of § 60.3.

(25) **Manufactured Home** – A structure, transportable in one (1) or more sections, which is built on a permanent chassis and is designed for use with or without a permanent foundation when attached to the required utilities. The term "manufactured home" does not include a "recreational vehicle".

(26) **Manufactured Home Park or Manufactured Home Subdivision** – A parcel or contiguous parcels of land divided into two (2) or more manufactured home lots for rent or sale.

(27) **Market Value –** Market value is the price of a structure that a willing buyer and seller agree upon. This can be determined by an independent appraisal by a professional appraiser; the property's tax assessment, minus land value; the replacement cost minus depreciation of the structure; the structure's Actual Cash Value.

(28) **New Construction** – Structures for which the "start of construction" commenced on or after the effective date of an initial FIRM or after December 31, 1974, whichever is later, and includes any subsequent improvements to such structures. For floodplain management purposes, new construction means structures for which the start of construction commenced on or after the effective date of a floodplain management regulation adopted by a community and includes any subsequent improvements to such structures.

(29) **New Manufactured Home Park or Manufactured Home Subdivision** – A manufactured home park or manufactured home subdivision for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including at a minimum, the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads) is completed on or after the effective date of floodplain regulations adopted by the community.

(30) **Recreational Vehicle –** A vehicle which is:
a. Built on a single chassis;
b. Four hundred (400) square feet or less when measured at the largest horizontal projection;

c. Designed to be self-propelled or permanently towable by a light duty truck; and designed primarily not for use as a permanent dwelling but as a temporary living quarters for recreational, camping, travel, or seasonal use.

(31) **Regulatory Floodway** – see definition for "Floodway".

(32) **Sheet Flow Area (**for community with AO, AH, or VO Zones only) – see definition for "Area of Shallow Flooding".

(33) **Special Flood Hazard Area (SFHA)** – The land in the floodplain within a community subject to a one (1) percent or greater chance of flooding in any given year. After detailed ratemaking has been completed in preparation for publication of the flood insurance rate map, Zone A usually is refined into Zones A, AO, AH, A1-30, AE, A99, AR, AR/A1-30 ,AR/AE, AR/AO, AR/AH, AR/A, VO, or V1- 30, VE or V. For purposes of these regulations, the term "special flood hazard area" is synonymous in meaning with the phrase "area of special flood hazard".

(34) **Start of Construction** – For other than new construction or substantial improvements under the Coastal Barrier Resources Act (P.L. 97-348), includes substantial improvement and means the date the building permit was issued, provided the actual start of construction, repair, reconstruction, rehabilitation, addition placement, substantial improvement or other improvement was within one hundred and eighty (180) days of the permit date. The actual start means either the first placement of permanent construction of a structure on a site, such as the pouring of slab or footings, the installation of piles, the construction of columns, or any work beyond the stage of excavation, or the placement of a manufactured home on a foundation. Permanent construction does not include land preparation, such as clearing, grading and filling; nor does it include the installation of streets and/or walkways; nor does in include excavation for a basement, footings, piers, or foundations or the erections of temporary forms; nor does it include the installation on the property of accessory buildings, such as garages or sheds not occupied as dwelling units or not part of the main structure. For a substantial improvement, the actual start of construction means the first alteration of any wall, ceiling, floor, or other structural part of a building, whether or not that alteration affects the external dimensions of the building.

(35) **Structure – For floodplain management purposes, a walled and roofed building,** including a gas or liquid storage tank, that is principally above ground, as well as a manufactured home. For insurance purposes, means:

a. A building with two or more outside rigid walls and a fully secured roof, that is affixed to a permanent site;

b. A manufactured home ("a manufactured home," also know as a mobile home, is a structure; built on permanent chassis, transported to its site in one or more sections, and affixed to a permanent foundation); or

c. A travel trailer without wheels, built on a chassis and affixed to a permanent foundation, that is regulated under the community's floodplain management and building ordinances or laws. For the latter purpose, "structure" does not mean recreational vehicle or a park trailer or other similar vehicle, except as described in paragraph (3) of this definition, or a gas or liquid storage tank.

(36) **Substantial Damage** – Damage of any origin sustained by a structure, whereby the cost of restoring the structure to before damaged condition would equal or exceed 50 percent of the market value of the structure before the damage occurred.

(37) **Substantial Improvement** – Any reconstruction, rehabilitation, addition or other improvements to a structure, the cost of which equals or exceeds 50 percent of the market value of the structure before the "start of construction" of the improvement. This term includes structures which have incurred "substantial damage", regardless of the actual repair work performed. The term does not,however, include:

- **a.** Any project to correct existing violations of state or local health, sanitary, or safety code specifications which have been identified by the local code enforcement official and which are the minimum necessary to assure safe living conditions or
- **b.** Any alteration of the "historic structure", provided that the alteration will not preclude the structure's continued designation as a "historic structure".

(38) **Variance** - A grant of relief by a community from the terms of the floodplain management ordinance that allows construction in a manner otherwise prohibited and where specific enforcement would result in unnecessary hardship.

(39) **Violation** – Failure of a structure or other development to be fully compliant with the community's floodplain management ordinance. Construction or other development without required permits, lowest floor elevation documentation, flood-proofing certificates or required floodway encroachment calculations is presumed to be in violation until such time as that documentation is provided.

317-3. ADMINISTRATIVE PROVISIONS

(1) **Designation of municipal Floodplain Administrator**. The Building Official is designated the Floodplain Administrator. The Floodplain Administrator shall have the authority to delegate performance of certain duties to other employees. The Floodplain Administrator is authorized and directed to administer the provisions of these regulations. The Floodplain Administrator shall have the authority to render interpretations of these regulations consistent with the intent and purpose of these regulations and to establish policies and procedures in order to clarify the application of its provisions. Such interpretations, policies and procedures shall be consistent with the intent and purpose of these regulations and the flood provisions of the building code and shall not have the effect of waiving specific requirements without the granting of a variance.

(2) **Building Permit Required**. All proposed construction or other development within a Special Flood Hazard Area shall require a permit. Prior to the issuance of a building or development permit, the applicant shall submit evidence that all necessary permits and approvals have been received from all government agencies from which approval is required by federal or state law. A permit fee (based on the cost of the construction) may be required to be paid to the Town of North Providence and a copy of a receipt for the same shall accompany the application. An additional fee may be charged if the code enforcement officer and/or board of appeals needs the assistance of a professional engineer. Building permits for development in the special flood hazard area shall be reviewed by the floodplain administrator or their designee for:

- **a.** Construction with materials resistant to flood damage
- **b.** Construction by methods and practices that minimize flood damage, and

c. Construction with electrical, heating, ventilation, plumbing, and air conditioning equipment and other service facilities that are designed and/or located so as to prevent water from entering or accumulating within the components during conditions of flooding.
d. Existing contour intervals of site and elevations of existing structures must be included on plan proposal.

(3) **Disclaimer of Liability.** The degree of flood protection required by the ordinance is considered reasonable but does not imply total flood protection.

(4) **Severability.** If any section, provision, or portion of this ordinance is adjudged unconstitutional or invalid by a court, the remainder of the ordinance shall not be affected.

(5) **Abrogation and Greater Restriction.** This ordinance shall not in any way impair/remove the necessity of compliance with any other applicable laws, The National Flood Insurance Program Special Flood Hazard Area requires permits for all projects that meet the definition of development, not just "building" projects. Development projects include any filling, grading, excavation, mining, drilling, storage of materials, temporary stream crossings. If the construction or other development within a Special Flood Hazard Area is not covered by a building permit, all other non-structural activities shall be permitted by either the Rhode Island Coastal Resources Management Council and/or the Rhode Island Department of Environmental Management as applicable. Therefore if another State agency issues a permit, the local building official must have the opportunity for input and keep a copy of the respective permit in their files, ordinances, regulations, etc. Where this ordinance imposes a greater restriction, the provisions of this ordinance shall control.

(6) **Enforcement**. The building official shall enforce all provisions as applicable in reference to RIGL § 23-27.3-108.1

(7) **Penalties.** Every person who shall violate any provision of this code shall be subject to penalties put forth in RIGL § 23-27.3-122.3.

(8) **Record Keeping.** The municipal floodplain administrator or their designee shall maintain all records of permits for development in the special flood hazard area, including but not limited to: elevation certificates, building permits, construction drawings, substantial improvements, substantial damages, floodproofing and variances.

317-4. NOTIFICATIONS

SECTION A. NOTIFICATION OF WATERCOURSE ALTERATION

(1) In a riverine situation, the Town of North Providence shall notify the following of any alteration or relocation of a watercourse:
a. Adjacent Communities
b. Bordering States (optional)
c. NFIP State Coordinator, Rhode Island Emergency Management Agency, 645 New London Avenue, Cranston, RI 02920
d. Risk Analysis Branch, Federal Emergency Management Agency, Region 1 99 High Street, 6th Floor Boston, MA 02110

(2) The carrying capacity of the altered or relocated watercourse shall be maintained.

SECTION B. NOTIFICATION OF PHYSICAL CHANGE EFFECTING FLOOD ELEVATIONS

(1) The Town of North Providence shall notify the Administrator of the Federal Emergency Management Agency of physical changes effecting flood elevation, flood hazard area boundaries, or floodway designations; by submitting technical or scientific data in accordance with this part. Such a submission is necessary so that upon confirmation of those physical changes affecting flooding conditions, risk premium rates and flood plain management requirements will be based upon current data. Submission will occur as soon as practicable, but not later than six months after the date such information becomes available.

317-5. USE REGULATIONS

SECTION A. REFERENCE TO EXISTING REGULATIONS

(1) Compliance with Existing State Regulations. (b, c, d, e communities) The Special Flood Haza Areas are established as a floodplain overlay district. All development in the district, including structural and non-structural activities, whether permitted by right or by special permit must be in compliance with the following:

- a. Rhode Island State Building Code (As established under Rhode Island General Law § 23-27.3);
- b. Coastal Resources Management Act, Rhode Island Coastal Resources Management Council (RIGL § 46-23);
- c. Endangered Species Act, Rhode Island Department of Environmental Management (RIGL § 20-1-2);
- d. Freshwater Wetlands Act, Rhode Island Department of Environmental Management (RIGL § 2-1-18);
- e. Minimum Standards Related to Individual Sewage Disposal Systems, Rhode Island Department of Environmental Management (RIGL §, 5-56, 5-56.1, 23-19.15, 23-19.5, 23-24.3, 42-17.1, and 46-13.2); and
- f. Water Quality Regulations, Rhode Island Department of Environmental Management (RIGL§ 42-17.1 and 42-17.6 and 46-12).

(2) **Variances.** Any variances from the provisions and requirements of the above referenced state regulations may only be granted in accordance with the required variance procedures pursuant to Rhode Island State Building Code, Appendix G, Section G105- Variances.

SECTION B. OTHER USE REGULATIONS

(1) **Residential Structures in the A1-30, AE, and AH Zones**. Require that all new construction and substantial improvements of residential structures within Zones A1-30, AE, and AH. The floodplain management ordinance is part of a federal requirement for communities that choose to participate in the NFIP. However, the state already administers regulations that take care of many floodplain management concerns. Referencing existing regulations is important to ensure that projects have been reviewed under the appropriate state regulations and that variances to the conditions of the bylaw do not erroneously allow variances to state requirements.
zones on the community's FIRM have the lowest floor (including basement)

elevated to or above the base flood level, unless the community is granted an exception by the Federal Insurance Administrator for the allowance of basements; and,
Have fully enclosed areas below the lowest floor shall be used solely for parking of vehicles, building access or storage in an area other than a basement and which is subject to flooding shall be designed to automatically equalize hydrostatic flood forces on exterior walls by allowing the entry and exit of floodwaters

(2) **Residential Structures in the AO Zones.** Within Zones AO on the FIRM, new and substantially improved residential structures shall have the top of the lowest floor at least as high as the FIRM's depth number above the highest adjacent grade and non-residential structures shall be elevated or flood- proofed above the highest adjacent grade to at least as high as the depth number on the FIRM. On FIRMs without a depth number for the AO Zone, structures shall be elevated or floodproofed to at least two feet above the highest adjacent grade.

(3) **Non-residential Structures in the A1-30, AE, and AH Zones**. Requires that all new construction and substantial improvements of non-residential structures within Zones A1-30, AE, and AH zones on the community's firm:

- **a.** Have the lowest floor (including basement) elevated to or above the base flood level and have fully enclosed areas below the lowest floor used solely for parking of vehicles, building access or storage in an area other than a basement and which is subject to flooding shall be designed to automatically equalize hydrostatic flood forces on exterior walls by allowing the entry and exit of floodwaters; or,
- **b.** Together with attendant utility and sanitary facilities, be designed so that below the base flood level the structure is watertight with walls substantially impermeable to the passage of water and with structural components having the capability of resisting hydrostatic and hydrodynamic loads and effects of buoyancy;
  - **i.** A registered professional engineer or architect shall develop and/or review structural design, specifications, and plans for the construction, and shall certify that the design and methods of construction is in accordance with accepted standards of practice for meeting the requirements of section (3)(b) of this section.

(4) **Drainage in AH, and AO Zones.** Within Zones AH and AO on the FIRM, adequate drainage paths must be provided around structures on slopes, to guide floodwaters around and away from proposed structures.

- **a. Other source of BFE Data in A Zones**. In A Zones, in the absence of FEMA BFE data and floodway data, obtain, review and reasonably utilize any base flood elevation and floodway data available from a Federal, State, or other sources as criteria for requiring that new construction, substantial improvements, or other development in Zone A on the community's FHBM or FIRM meet the standards in section 3(a) and 3(b) of this section.

(5) **Detached accessory structures in Zones A, AE, A1-30, AO, and AH.** Detached accessory structures in Zones A, AE, A1-30, AO, and AH (i.e., garages, sheds) do not have to meet the elevation or dry flood-proofing requirement if the following standards are met:

a. The structure has a value less than $1000.
b. The structure has unfinished interiors and must not be used for human habitation. An apartment, office or other finished space over a detached garage is considered human habitation and would require the structure to be elevated.
c. The structure is not in the flood-way.
d. The structure is not used for storage of hazardous materials.
e. The structure is used solely for parking of vehicles and/or limited storage.
f. The accessory must be wet floodproofed and designed to allow for the automatic entry and exit of flood water.
g. The accessory structure shall be firmly anchored to prevent flotation, collapse, and lateral movement.
h. Service facilities such as electrical, mechanical, and heating equipment must be elevated or floodproofed to or above the base flood elevation.
i. The structure must not increase the flood levels in the floodway.

(6) **Structures in the V1-30, VE, and V Zones**. In V1-30, VE, and V Zones, require that all new construction and substantial improvements:
   a. Are elevated on pilings and columns so that the bottom of the lowest horizontal structural member of the lowest floor (excluding the pilings or columns) is elevated to or above the base flood level; and
   b. The pile or column foundation and structure attached thereto is anchored to resist flotation, collapse and lateral movement due to the effects of wind and water loads acting simultaneously on all building components. Water loading values used shall be those associated with the base flood. Wind loading values used shall be those required by applicable State or local building standards. A registered professional engineer or architect shall develop or review the structural design, specifications and plans for the construction, and shall certify that the design and methods of construction to be used are in accordance with accepted standards of practice for meeting the provisions of this Chapter.
   c. Have the space below the lowest floor either free of obstruction as described in FEMA Technical Bulletin 5 "Free of Obstruction Requirements for Buildings Located in Coastal High Hazard Area in Accordance with the National Flood Insurance Program, or constructed with non-supporting breakaway walls, open wood lattice-work, or insect screening intended to collapse under wind and water loads without causing collapse, displacement, or other structural damage to the elevated portion of the building or supporting foundation system. For the purposes of this section, a breakaway wall shall have a design safe loading resistance of not less than 10 and no more than 20 pounds per square foot. Use of breakway walls which exceed a design safe loading resistance of 20 pounds per square foot (either by design or when so required by local or State codes) may be permitted only if a registered professional engineer or architect certifies that the designs proposed meet the following conditions:
      i. Breakaway wall collapse shall result from a water load less than that which would occur during the base flood; and,

ii. The elevated portion of the building and supporting foundation system shall not be subject to collapse, displacement, or other structural damage due to the effects of wind and water loads acting simultaneously on all building components (structural and non-structural). Water loading values used shall be those associated with the base flood. Wind loading values used shall be those required by applicable State or local building standards. Such enclosed space shall be useable solely for parking of vehicles, building access, or storage.

(7) **Location of New Structures in the V1-30, VE, and V Zone.** In V1-30, VE, and V Zones, requires that all new construction on the community's FIRM is located landward of the reach of mean high tide.

(8) **Subdivision Proposals in the Special Flood Hazard Area.** All subdivision proposals must be designed to assure that:

a. Such proposals minimize flood damage;
b. All public utilities and facilities are located and constructed to minimize or eliminate flood damage; and
c. Adequate drainage is provided to reduce exposure to flood hazards.

(9) **Utilities in the Special Flood Hazard Area.** Within flood-prone areas, all residential utilities shall be:

a. New and replacement water supply systems to be designed to minimize or eliminate infiltration of flood waters into the systems;
b. New and replacement sanitary sewage systems to be designed to minimize or eliminate infiltration of flood waters into the systems and discharges from the systems into flood waters and onsite waste disposal systems to be located to avoid impairment to them or contamination from them during flooding.

(10) **Change of Structural Use.** No person shall change from business/commercial to residential use of any structure or property located in the floodway of a Special Flood Hazard Area so as to result in a use or expansion that could increase the risk to the occupants.

(11) **Manufactured Homes.** The community shall require that manufactured homes that are placed or substantially improved within Zones A1-30, AH, AE, V1-30, VE and V on the community's FIRM on sites;

a. Outside of a manufactured home park or subdivision,
b. In a new manufactured home park or subdivision,
c. In an expansion to an existing manufactured home park or subdivision; or;
d. In an existing manufactured home park or subdivision on which a manufactured home has incurred "substantial damage" as the result of a flood, be elevated on a permanent foundation such that the lowest floor of the manufactured home is elevated to or above the base flood elevation and be securely anchored to an adequately anchored foundation system to resist floatation collapse and lateral movement or the chassis is

supported by reinforced piers no less than 36 inches in height above grade and securely anchored.

(12) **Recreational Vehicles.** Recreational vehicles placed on sites within Zones A1-30, AH, AE, V1-30, VE and V on the community's FIRM are required to be either:

- **a.** Be on the site for fewer than 180 consecutive days,
- **b.** Be fully licensed and ready for highway use, or;
- **c.** Meet the permit requirements of Article II, Section B.(2) of this chapter and the elevation and anchoring requirements for "manufactured homes" in (12)(d) of this section.

SECTION C. BASE FLOOD ELEVATION, FLOODWAY DATA, AND FLOODWAY ENCROACHMENT

(1) **Floodway Data in Zones without an Established Regulatory Floodway.** In Zones A, A1-30, and AE, and if appropriate AO, along watercourses that have not had a regulatory floodway designated, the best available Federal, State, local, or other floodway data shall be used to prohibit encroachments in floodways which would result in any increase in flood levels within the community during the occurrence of the base flood discharge.

(2) **Adoption of Regulatory Floodway.** When the Federal Insurance Administrator has provided a notice of final base flood elevations within Zones A1-30 and/or AE on the community's FIRM and, if appropriate, has designated AO zones, AH zones, A99 zones, and A zones on the community's FIRM, and has provided data from which the community shall designate its regulatory floodway, the community shall:

- **a.** Select and adopt a regulatory floodway based on the principle that the area chosen for the regulatory floodway must be designed to carry the waters of the base flood, without increasing the water surface elevation of that flood more than one foot at any point;
- **b.** Prohibit encroachments, including fill, new construction, substantial improvements, and other development within the adopted regulatory floodway unless it has been demonstrated through hydrologic and hydraulic analyses performed in accordance with standard engineering practice that the proposed encroachment would not result in any increase in flood levels within the community during the occurrence of the base flood discharge;

(3) **Encroachment in A1-30, and AE Zones.** In Zones A1-30 and AE, along watercourses that have regulatory floodway designated on the Town of North Providence FIRM encroachments are prohibited in the regulatory floodway which would result in any increase in flood levels within the community during the occurrence of the base flood discharge

(4) **Base Flood Elevation Data.** Base flood elevation data is required for subdivision proposals or other developments greater than fifty (50) lots or 5 acres, whichever is the lesser, within unnumbered A zones.

(5) **Base Flood Elevations in A Zones**. In the absence of FEMA BFE data and floodway data, the best available Federal, State, local, or other BFE or floodway data shall be used as the basis for

elevating residential and non-residential structures to or above the base flood level and for floodproofing non-residential structures to or above the base flood level.

(6) **Fill Prohibited.** Prohibit the use of fill for structural support of buildings within Zones V1-30, VE, and V on the community's FIRM;

(7) **Base Flood Elevation in Coastal High Hazards Areas**. When the Federal Insurance Administrator has provided a notice of final base flood elevations within Zones A1-30 and/or AE on the community's FIRM and, if appropriate, has designated AH zones, AO zones, A99 zones, and A zones on the community's FIRM, and has identified on the community's FIRM coastal high hazard areas by designating Zones V1-30, VE, and/or V, the community shall:

a. Obtain the elevation (in relation to mean sea level) of the bottom of the lowest structural member of the lowest floor (excluding pilings and columns) of all new and substantially improved structures, and whether or not such structures contain a basement.

Section 2. The provisions of this Ordinance are severable and, in the event that any provision of the Ordinance is determined to be invalid, for any reason, the remaining provisions shall remain in full force and effect.

Section 3. This Ordinance shall take effect upon adoption and any Ordinance or portions thereof inconsistent herewith are hereby repealed.

Approved as to form and legality:

Town Solicitor

June 18, 2026

Adopted

MaryAnn DeAngelus, Town Clerk

Dino P. Autiello, Town Council President

June 22, 2026

Approved

Charles A. Lombardi, Mayor